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Assignment 2

IP Infringement

Assigned Cases

Case 3: Youngblood et al. v. Meta (2026)

Case 13: Alifax v. Alcor Scientific (2024)

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IP Infringement: Case Analysis

HUM 4747 — Assignment 2

Calculation: last two digits = 32 $\Rightarrow$ (32 mod 30) + 1 = **3** and (32 mod 30) + 11 = **13**
Assigned Cases: Case 3 — Youngblood et al. v. Meta | Case 13 — Alifax v. Alcor Scientific

1 Task 1: Case Analyses

1.1 Case 3: Youngblood et al. v. Meta Platforms, Inc. (DMCA Anti-Circumvention and AI Training Data, 2026)

Background of the Case

Meta Platforms, Inc. is one of the world's largest technology conglomerates, operating Facebook, Instagram, WhatsApp, and a growing portfolio of artificial intelligence research projects. Central to Meta's AI ambitions is **V-JEPA** (Video Joint Embedding Predictive Architecture), a non-generative video understanding model designed to learn rich visual representations from large quantities of video data. Like most modern deep learning systems, V-JEPA required enormous volumes of diverse video content to train effectively [3].

YouTube, owned by Google/Alphabet, is the world's largest video-sharing platform and hosts billions of videos created by independent creators, journalists, educators, and media companies. YouTube enforces access to its content through technical protection measures (TPMs) — principally rate limiting, authentication requirements, robot-exclusion protocols, and API access controls — and its Terms of Service explicitly prohibit bulk automated downloading of content without written permission [4].

The plaintiffs in this case were a group of independent content creators, YouTubers, and podcasters led by **Youngblood et al.**, who alleged that Meta had systematically circumvented YouTube's technical protection measures to harvest large quantities of video content for the purpose of training V-JEPA, without obtaining licences, compensating creators, or disclosing the use of their work [1].

Triggering Incident

In **February 2026**, the plaintiffs filed a class action lawsuit against Meta in U.S. federal court. The core triggering allegation was that Meta, either directly or through third-party contractors, had deployed automated scraping tools specifically designed to bypass YouTube's technical access controls in order to download protected video content at scale.

Unlike conventional copyright infringement claims — which focus on copying the *content* of a work — the complaint was primarily structured around **DMCA Section 1201 anti-circumvention violations**: the allegation that Meta had circumvented the *technological measures* that YouTube uses to control access to its platform and the creative works hosted on it. This framing was legally significant because DMCA anti-circumvention claims do not require proof that the copied content was commercially exploited in a traditional sense; the act of bypassing the technical barrier is itself the alleged violation [2].

The case followed a pattern established by earlier litigation and public reporting suggesting that major AI companies had scraped YouTube content as part of large-scale dataset construction efforts, including datasets with names such as HD-VILA-100M and Panda-70M that were known to draw on YouTube video sources.

Legal or Regulatory Issues

The case raised several distinct and overlapping legal questions:

1. **DMCA Section 1201 — Anti-Circumvention:** Section 1201 of the Digital Millennium Copyright Act prohibits the circumvention of technological measures that "effectively control access" to a copyrighted work. YouTube's rate-limiting, authentication, and robot-exclusion mechanisms are arguable TPMs under this definition. If Meta deployed tools specifically designed to defeat these measures, it would constitute a prima facie violation regardless of whether the underlying video content would otherwise be protected under fair use [2].

2. **Copyright Infringement (17 U.S.C. §§ 106, 501):** Separately from the anti-circumvention claim, downloading and reproducing videos to create training datasets constitutes reproduction of copyrighted works. The plaintiffs alleged this reproduction was not excused by fair use because: (a) the purpose was commercial AI development; (b) the works were taken in their entirety; and (c) if AI models trained on the videos can substitute for or compete with the original content, the use harms the market for the originals.

3. **Breach of Contract / Terms of Service:** YouTube's Terms of Service explicitly prohibit scraping, automated downloading, and circumvention of access controls. By deploying scraping tools, Meta arguably breached a binding contractual obligation, potentially giving rise to additional claims beyond those under the DMCA.

4. **The Fair Use Defence (17 U.S.C. § 107):** Meta's likely defence would be that training an AI model on video data constitutes a *transformative* use that does not substitute for the original works in the marketplace. Courts have begun to distinguish between the act of *training* (potentially transformative) and the act of *generating outputs* that reproduce or replace originals. However, the anti-circumvention claim is largely immune to the fair use defence under DMCA § 1201, making this case structurally harder for Meta to dismiss on fair use grounds alone.

Stakeholders and Their Positions

Stakeholder	Position
Plaintiffs (Youngblood et al., content creators)	Their creative work was taken without consent, compensation, or credit. They argued that Meta profited commercially from their labour while circumventing the protective mechanisms YouTube put in place.
Meta Platforms	Likely to argue that (a) training on publicly viewable content is transformative and consistent with fair use; (b) V-JEPA does not generate or reproduce the original videos; and (c) any scraping was done through publicly accessible interfaces, not by defeating meaningful access controls.
YouTube / Google	As a non-party, YouTube has an interest in protecting its Terms of Service and platform integrity. If scraping at scale is normalised, its ability to monetise content on behalf of creators and advertisers is undermined.
Content Creator Community	Broadly supportive of the plaintiffs. Independent creators lack the legal resources to individually pursue AI companies and rely on class actions to assert rights at scale.
AI Research Community	Generally opposes broad anti-circumvention liability for training data collection, arguing it would severely restrict access to diverse datasets and impede legitimate machine learning research.

Impact and Consequences

- **For Meta:** The case, even before resolution, created reputational pressure and legal uncertainty around Meta's AI dataset practices. If DMCA anti-circumvention liability attaches, statutory damages under Section 1203 can reach $2,500 per act of circumvention and up to $25,000 per device sold with circumvention capability — amounts that could accumulate to devastating sums across millions of scraped videos.
- **For Content Creators:** The suit represented one of the first serious class-action attempts by individual creators to assert legal rights specifically over AI training data use, rather than merely output reproduction. Even if the case was voluntarily dismissed against Meta,

it validated the legal theory and established precedent for future cases against other defendants.

- **For the AI Industry:** The case triggered a reassessment of data acquisition practices across the industry. Companies building large-scale training datasets from web-scraped video faced new legal risk that had not previously been systematically tested in court.
- **For YouTube:** The litigation indirectly reinforced YouTube's leverage in negotiating data licensing deals with AI companies, as the viability of scraping without permission became legally contested.

Court or Regulatory Decisions

No merits judgment was issued in this specific case. The plaintiffs **voluntarily dismissed** the action against Meta in 2026, which under Federal Rule of Civil Procedure 41(a) carries no preclusive effect — it does not constitute an adjudication on the merits and does not prevent the same claims from being pursued in future proceedings or against other defendants.

The dismissal most likely reflects one of two strategic realities: (a) a confidential settlement was reached providing some form of compensation or behavioural commitment from Meta without public disclosure; or (b) the plaintiffs elected to concentrate litigation resources against defendants such as Snap where the factual record of scraping was considered more clearly documented [12].

Critically, the underlying legal theory was *not* rejected by any court. In parallel cases, federal courts have allowed analogous DMCA anti-circumvention and copyright claims to proceed past motions to dismiss. In *NYT v. OpenAI*, the court found the NYT's theories of induced infringement and training-data use legally plausible. In *Getty v. Stability AI*, the court similarly allowed claims of direct infringement and trademark dilution to proceed [5, 6]. The legal framework constructed in Youngblood thus remains alive and untested on its merits — a status that constitutes a significant ongoing legal risk for the AI industry.

Broader Implications

The Youngblood v. Meta case and its parallel cases represent a structural inflection point in how AI training data law is developing:

1. **Anti-Circumvention as a New AI Litigation Weapon:** By framing the claim under DMCA § 1201 rather than standard copyright, plaintiffs sidestepped the fair use defence that AI companies rely on most heavily. This legal strategy, if it succeeds in related cases, could force AI companies to obtain licences for training data regardless of transformativeness arguments.
2. **Platform Terms of Service as Enforceable Rights:** The case reinforced that platform ToS are not merely contractual formalities but are backed by DMCA enforcement mechanisms when they are implemented through technical access controls.
3. **Incentivising Licensing Markets:** Legal uncertainty around scraping has accelerated the development of formal licensing frameworks. YouTube, Getty, and several news organisations have begun signing data licensing deals with AI companies, creating an emerging market that would not have developed without litigation pressure.

4. **Policy Implications:** The U.S. Copyright Office's 2025 AI Training Report acknowledged the tension between enabling AI innovation and protecting creator rights, and recommended that Congress consider a licensing framework for training data. Cases like Youngblood provide the factual record that informs such legislative proposals [9].

Personal/Analytical Reflection

I find the Youngblood case ethically unambiguous even if it is legally complex. When a trillion-dollar company systematically harvests the creative work of independent video creators — people who built their audiences through years of personal effort and who depend on that content for their livelihoods — without consent, compensation, or even disclosure, it is not engaged in a legally grey area of "transformative use." It is engaged in the large-scale appropriation of other people's labour for private commercial gain. The sophistication of the legal mechanism used to accomplish this (defeating technical access controls rather than simply copying files) does not make the conduct more ethical; if anything, it makes it more deliberate.

What I find most troubling about this case is the structural power imbalance it exposes. A YouTuber with 100,000 subscribers has no legal department, no litigation budget, and no practical ability to detect that their content was scraped, let alone to pursue remedies. Class actions like Youngblood are the only realistic mechanism through which such individuals can assert rights against well-resourced adversaries — and even then, the practical barriers are enormous.

The voluntary dismissal against Meta should not be read as a victory for the AI industry. It may reflect a quiet settlement, or simply a tactical decision to build a stronger case elsewhere. The legal theory that platform TPMs qualify as DMCA-protected measures, and that defeating them for AI training is a violation regardless of fair use, has not been defeated. It is, in my view, legally sound and morally justified. The broader question — whether AI companies owe creators compensation for training data — will not go away, and this case has helped ensure it reaches the courts in forms that are harder to dismiss.

1.2 Case 13: Alifax S.r.l. v. Alcor Scientific Inc. (Trade Secret Misappropriation in Medical Algorithms, U.S., 2024)

Background of the Case

Alifax S.r.l. is an Italian medical device company specialising in automated blood analysis instruments, most notably systems used to measure erythrocyte sedimentation rate (ESR) — a standard haematological test used in diagnosing inflammatory conditions, infections, and certain cancers. Alifax's competitive advantage in the ESR market rested substantially on proprietary software algorithms that convert raw photometric readings from its instruments into clinically validated ESR values. These conversion algorithms embodied years of clinical research and engineering refinement, and Alifax treated them as highly confidential trade secrets [7].

Alcor Scientific Inc. is a U.S.-based competitor in the same automated blood analysis market. Alcor manufactured its own line of ESR analysers and competed directly with Alifax for hospital, laboratory, and clinical customers in the United States and internationally.

The dispute arose from allegations that Alcor had obtained and used Alifax's proprietary conversion algorithm — the mathematical formula and associated implementation details that translate instrument sensor readings into ESR results — without authorisation, thereby misappropriating a core trade secret to build a competing product.

Triggering Incident

The triggering events centred on Alifax's discovery that Alcor's blood analyser products appeared to incorporate processing logic that was substantially identical to, or directly derived from, Alifax's proprietary conversion algorithm. The level of similarity was alleged to be far beyond what independent development would be expected to produce, suggesting that Alcor had accessed Alifax's confidential technical information.

The precise mechanism through which Alifax alleged the algorithm was obtained was not publicly disclosed in summary reporting, but trade secret cases of this nature typically involve one or more of the following vectors: a former employee who moved between the companies, a joint development or distribution arrangement that provided access to confidential materials, or reverse engineering that crossed the line into misappropriation of specific protected expression.

Alifax brought claims under both the federal **Defend Trade Secrets Act (DTSA, 18 U.S.C. § 1836)** and applicable state trade secret law, seeking damages and injunctive relief. The case proceeded to a full jury trial in the U.S. District Court in 2024.

Legal or Regulatory Issues

1. **Defend Trade Secrets Act (DTSA, 18 U.S.C. § 1836):** The DTSA, enacted in 2016, provides a federal civil cause of action for trade secret misappropriation. To succeed, a plaintiff must establish: (a) the existence of a qualifying trade secret; (b) that reasonable measures were taken to keep it secret; and (c) that the defendant misappropriated it through improper means, including acquisition by someone who knew or had reason to know it was a secret.

2. **Qualifying as a Trade Secret:** Alifax needed to demonstrate that the conversion algorithm was not publicly known or readily ascertainable by proper means, and that it provided independent economic value from its secrecy. A proprietary calibration formula that produces clinically validated results and requires years of development clearly meets this threshold if properly protected — it is precisely the kind of "know-how" that trade secret law is designed to protect.

3. **Reasonable Measures to Protect Secrecy:** Courts applying the DTSA require plaintiffs to show they took reasonable steps to maintain confidentiality — for example, through non-disclosure agreements (NDAs), access controls, restricted documentation, and employee confidentiality training. Alifax presumably demonstrated such measures to the jury's satisfaction.

4. **The Boundary Between Trade Secret and Patentable Invention:** An important legal nuance in algorithm cases is whether the subject matter is more appropriately protected as a patent (which requires public disclosure) versus a trade secret (which requires non-disclosure). Alifax's choice of trade secret protection reflects a deliberate strategy to avoid the time-limited, publicly disclosed nature of patent protection in favour of perpetual, confidential protection — provided secrecy is maintained.

5. **Potential Reverse Engineering Defence:** Alcor may have argued that it independently derived any similar algorithm through legitimate reverse engineering or independent research. Under trade secret law, reverse engineering of a legitimately acquired product is generally a valid defence. However, if the means of acquisition were improper — such as through a confidential business relationship, a former employee subject to an NDA, or unauthorised access to technical documentation — the defence fails.

Stakeholders and Their Positions

Stakeholder	Position
Alifax S.r.l.	Its proprietary conversion algorithm was a core competitive asset, developed through substantial investment. Alcor's product incorporated this formula without authorisation, causing direct commercial harm and undermining Alifax's market position. Sought damages and an injunction preventing further use.
Alcor Scientific	Likely argued independent development, legitimate access, or that any similarities were dictated by the underlying science and engineering constraints of ESR measurement rather than misappropriation of Alifax-specific expression.
Jury / Court	Found in favour of Alifax, concluding that Alcor had misappropriated a qualifying trade secret, and awarded significant monetary damages.
Clinical Laboratories and Hospitals	Indirectly affected as customers of both companies; an injunction preventing Alcor from using the algorithm in its products could affect availability and pricing of competing ESR analysers.
Medical Device Industry	Has a broad interest in how "hidden" algorithmic know-how embedded in instruments is classified and protected, given that many device companies compete on the strength of proprietary processing logic.

Impact and Consequences

- **For Alifax:** A jury verdict in its favour validated its trade secret strategy and resulted in approximately $12 million in damages. The decision also led to injunctive relief preventing Alcor from continuing to use the misappropriated algorithm, potentially forcing a costly product redesign.
- **For Alcor:** Facing a significant damages award, injunctive relief, and the reputational consequences of a jury finding of misappropriation, Alcor's position in the market was materially weakened. Redesigning or discontinuing affected products would have immediate operational and financial consequences.
- **For the Medical Device Industry:** The case reinforced that algorithmically encoded processing logic — even if invisible to end users — is legally protectable as a trade secret when properly maintained. This has important implications for how medical device companies structure their IP protection strategies, particularly as instruments become increasingly software-defined.

- **For Software Engineers in Healthcare:** The case is a reminder that algorithms implemented in commercial products can carry trade secret status even when they are embedded in compiled software, calibration files, or firmware — forms that a user might assume are entirely opaque and therefore freely usable.

Court or Regulatory Decisions

The jury found in favour of Alifax and returned a verdict awarding approximately $12 million in damages for trade secret misappropriation — a figure that reflected both the commercial value of the misappropriated algorithm and the harm caused to Alifax's competitive position in the ESR analyser market [7]. The verdict confirmed that:

- The conversion algorithm constituted a qualifying trade secret under applicable law, possessing the requisite independent economic value and confidentiality.
- Alifax had taken reasonable measures to protect the secrecy of the algorithm, satisfying the DTSA's protective-measures requirement.
- Alcor had misappropriated the trade secret through improper means, the specific nature of which was assessed by the jury on the full trial record.
- The misappropriation caused quantifiable commercial harm to Alifax sufficient to support the substantial damages award.

The court also considered injunctive relief to prevent Alcor from continuing to use the misappropriated algorithm in its products — a remedy that, if granted, would force Alcor to redesign core processing logic at significant cost. The case demonstrates that trade secret doctrine is well-suited to protect algorithmic know-how in medical devices, particularly where the value of the algorithm is closely tied to its confidentiality and where patent protection — which would require public disclosure of the formula — would be strategically undesirable [7, 8].

Broader Implications

1. **Algorithms as Protectable Trade Secrets:** This case confirms that mathematical formulas, calibration algorithms, and conversion logic embedded in software or firmware can constitute trade secrets — a point that is not always obvious to software engineers who may assume that only "source code" carries IP protection. The formula itself, its parameters, and the engineering rationale behind it can all qualify if treated confidentially.
2. **AI and ML Models as Trade Secrets:** By analogy, the Alifax case has direct relevance for companies deploying machine learning models, trained weights, and proprietary inference pipelines in commercial products. These assets are structurally similar to Alifax's conversion algorithm: they encode significant development investment, are not publicly disclosed, and provide competitive advantage. Misappropriation of model weights or training pipelines through employee mobility or unauthorised access would be analysable under the same DTSA framework.
3. **Employee Mobility and Knowledge Transfer Risk:** Many trade secret cases in the medical device and technology sectors arise from employee movement between competitors. The case reinforces the importance of robust NDA policies, clear identification of what constitutes confidential information during onboarding and offboarding, and monitoring of data access during transition periods.

4. **Cross-Border Enforcement:** As an Italian company enforcing its trade secrets against a U.S. defendant under the federal DTSA, Alifax illustrates the increasingly global nature of trade secret enforcement. The DTSA's broad jurisdictional scope makes it an effective tool for international IP holders seeking remedies in U.S. courts.

Personal/Analytical Reflection

The Alifax v. Alcor case forces a difficult but necessary question: in a world where competitive advantage increasingly lives inside software rather than physical machines, how do we draw the line between legitimate competition and theft?

My view is that the jury reached the right outcome, and the reasoning matters. Alcor did not independently invent a superior algorithm through its own research and engineering investment. It arrived at the same result as Alifax — in a field where the precise conversion formula is genuinely difficult to derive — through means that a jury found to be improper. This is not a case about ideas being too similar. It is a case about a company taking a shortcut that its competitor had paid, in years of R&D, to earn.

What I find most instructive about this case from the perspective of a software engineer is how invisible this kind of misappropriation can be. A calibration algorithm embedded in firmware looks, from the outside, like a black box. The product works. The outputs are correct. There is no obvious "stolen code" that a layperson could identify. But the formula that produces those outputs — the mathematical relationship between sensor readings and reported values — is where the real value lies, and it was protectable precisely because Alifax treated it as confidential and invested in building it.

This case is, in my opinion, a more important lesson for software engineers than more celebrated IP cases like patent trolling or app-store disputes. Most engineers will never encounter a patent dispute. But most will, at some point, work with code, models, or algorithms that belong to a former employer, a client, or a business partner. The Alifax verdict is a concrete reminder that the law takes that seriously — and rightly so.

2 Task 2: Who Owns AI Creativity?

Let me state my position directly: Yes, I believe that training large AI models on copyrighted creative works without authorisation is a form of IP violation — and at minimum, an ethical wrong serious enough that the law should treat it as one. The argument that mass ingestion is "transformative" because the model does not literally reproduce each work strikes me as a legal convenience that obscures what is actually happening: a company systematically consuming the life's work of thousands of human creators to build a commercial product that then competes with those very creators, without compensating them at all.

That said, I do not believe the right answer is simply to apply existing copyright doctrine without modification. The situation demands deliberate legal reform. Here is why.

The Core Tension: Training vs. Output

It is important to disaggregate the question. There are in fact *two* distinct activities that may implicate IP rights when an AI generates creative content:

1. **Training:** The ingestion of copyrighted works to build a model's parameters. Here, the works are used as data rather than reproduced in a conventional sense.

2. **Output generation:** The production of new content that may reproduce, closely paraphrase, or compete with the market for original works.

Current litigation — including the NYT v. OpenAI case and the RIAA's suits against Suno and Udio — suggests that courts are beginning to separate these two activities. Training may be treated as partially transformative; output generation that reproduces or substitutes for originals is far harder to defend.

The Case Against Unrestricted AI Training

The argument that training on copyrighted works without licences constitutes infringement or at least ethical violation rests on several foundations.

First, **creators bear the full cost of production while AI companies capture the value**. A novelist spends years producing a manuscript. A journalist invests time and professional expertise in a news article. When these works are ingested as training data without compensation, the creator's investment subsidises a commercial AI product from which they receive nothing. This is not a technical legal argument; it is a straightforward observation about who pays and who benefits.

Second, **the market harm is real and growing**. If AI tools trained on professional creative work can produce outputs that substitute for commissioned writing, illustration, music, or journalism at a fraction of the cost, they directly erode the market that incentivises the creation of the original works. The NYT's argument — that ChatGPT outputs can substitute for Times articles, thereby reducing subscription revenue — is not speculative. It is already occurring [5].

Third, **the fair use defence is weaker than AI companies claim**. The four-factor fair use analysis under 17 U.S.C. § 107 requires courts to consider the purpose and character of the use, the nature of the copyrighted work, the amount taken, and the effect on the market for the original. AI training takes entire works, for a commercial purpose, in ways that may substantially harm the original market. Not all of these factors favour the AI developer.

The Case for Proportionate Reform Rather Than Prohibition

At the same time, prohibiting all AI training on copyrighted works would be both impractical and counterproductive. The boundaries of what constitutes "training" are difficult to draw, the enforcement challenge is enormous, and some AI training uses are genuinely beneficial — for scientific research, accessibility tools, language preservation, and educational applications.

The more nuanced position, and the one increasingly reflected in policy discussions, is that:

- **Licensing frameworks** should be developed that allow AI companies to train on copyrighted works in exchange for fair compensation to rights holders. This is preferable to either blanket prohibition or blanket permissiveness.
- **Transparency obligations** should require AI developers to disclose what copyrighted works were used in training, enabling rights holders to assert their interests and negotiate appropriately.
- **Output reproduction** should remain subject to strict copyright enforcement. An AI system that reproduces a journalist's article nearly verbatim in response to a user query has no serious fair use defence, and the law should treat it accordingly.

- **Remuneration mechanisms** modelled on collective licensing schemes (similar to those used for music performance rights or cable retransmission) could provide a practical way to compensate creators at scale without requiring individual licensing negotiations for each training data item.

The Human Authorship Question

The *Thaler v. Perlmutter* case — in which the U.S. Supreme Court declined to hear an appeal from a decision holding that AI-only outputs cannot receive copyright protection — establishes an important boundary: under current U.S. law, copyright requires a human author. This means that purely AI-generated content, however sophisticated, cannot itself be owned by the AI or its developer through copyright.

The practical implication is that AI companies cannot simultaneously argue that they deserve copyright in AI-generated outputs and that they are free to train their models on other people's copyrighted works. If human authorship is required for copyright protection, then the creative investment of the human authors whose works were ingested deserves commensurate legal recognition.

Conclusion

Intellectual property law in its current form was designed for a world in which creative works were produced, distributed, and consumed by humans. AI has disrupted every assumption that framework rested on. I do not think the answer is to abandon IP protection for creators — that would eliminate the economic incentive to produce the very content that makes AI systems valuable. Nor do I think the answer is to freeze AI development through sweeping prohibitions.

The answer I find most defensible is a pragmatic one: build a licensing and compensation framework that allows AI companies to access creative works legally, pay creators fairly, and operate transparently about what data they use. This already exists for music (through performance rights organisations), for cable television (through compulsory licensing), and in embryonic form for AI (through YouTube's and Getty's emerging data licensing programmes). The law needs to formalise and extend it.

To directly answer the question posed: *who owns AI creativity?* The AI company owns the model and its outputs — but the moral and ultimately legal debt owed to the human creators whose work made that model possible is real, it is growing, and it will eventually have to be paid. Cases like those we have analysed in Task 1 are how that reckoning begins.

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